

PROMISE OF JUSTICE INITIATIVE LICENSE AGREEMENT

This LICENSE AGREEMENT is made this **March 27, 2025** by and between the Promise of Justice Initiative, a not-for-profit organization ("Lessor"), and **Karen Hernandez and Danny Milojevic** ("Lessee").

WITNESSETH:

WHEREAS, Lessor is the manager of the property located at 1024 Elysian Fields Avenue, New Orleans, LA 70117, known as (the "Property"); and

WHEREAS, Lessor and Lessee have agreed, that Lessee shall have the rights under this License Agreement as set forth in the terms and provisions of this License Agreement's amendments.

NOW, THEREFORE, the parties hereto hereby agree as follows:

1. **Grant of License.** The license premises ("License Premises") shall consist of **the Auto Shop, the courtyard, the kitchen, large conference room and two (2) downstairs restrooms** in the Industrial Garden at 1024 Elysian Fields Avenue, New Orleans, LA 70117. The term of this agreement shall **begin at 1pm on 4/11/26 and end at 11pm on 4/11/26, including set-up and breakdown. The event times are 4pm-9:30pm. All for a cost of \$4,700, (base rental of \$4,000, \$500 security + cleaning and \$200 for the large conference room. Also note an additional \$500.00 refundable damage deposit, totalling \$5,200)** Either party may elect to terminate this agreement, with or without cause, by giving the other party written notice of such termination at least **thirty (30) days** prior to the event, no later than **March 11, 2026.**
2. **Use.** The License Premises shall be used by Lessee for a **Wedding.** The License Premises shall not be used or occupied for any purpose or in any manner which
 - 2.1. is unlawful or in violation of any applicable legal or governmental requirement, ordinance or rule;
 - 2.2. may be harmful to persons or property;
 - 2.3. may invalidate or increase the amount of premiums for any policy of insurance affecting the License Premises;
 - 2.4. may create a nuisance.

3. **Surrender of Possession.** At the termination of this agreement by lapse of time or otherwise, Lessee shall surrender possession of the License Premises to Lessor and shall return the License Premises in as good condition as when Lessee originally took possession, ordinary wear, loss or damage by fire, and damage resulting from the act of Lessor or its employees and agents excepted failing which Lessor may restore the License Premises to such condition and Lessee shall pay the cost thereof to Lessor on demand. Lessee shall remove Lessee's moveable items of personal property of every kind and description from the License Premises, at the end of the term, failing which Lessor may do so and Lessee shall be liable to Lessor for any expense incurred by Lessor therefore. Lessee will surrender License Premises with the same level of cleanliness in which it was granted. No alterations, additions or physical changes shall be made to the License Premises without Lessor's prior written consent.
4. **Rental Deposit.** Lessor and Lessee agree on a non-refundable rental deposit of **\$750.00**, which is due in full with the executed agreement no later than close of business on **the day that the license agreement is signed**. After that date, Lessor can no longer guarantee this space will be available. This deposit will be used to prorate the final balance of the rental at the end of the license agreement provided all of the following conditions have been met.
 - Per the Termination clause of this license agreement, written notice will be given to the Lessor by the Lessee by **March 11, 2026.**
 - Cancellation of the event after **March 11, 2026** will result in forfeiture of the deposit.
Cancellation within 72 hours will result in a forfeiture of the full rental fee.
5. **Damage & Violation Deposit.** Lessor and Lessee agree on a refundable damage deposit of **\$500.00** which is due in full with the remaining balance no later than close of business on **March 11, 2026.** The deposit should be in the form of a check made out to **The Promise of Justice Initiative**. This deposit will be returned in full to the Lessee at the end of the license agreement provided all of the following conditions have been met:
 - Lessee returns the unit leased in the same condition it was received.
 - Lessee returns borrowed equipment in the same condition it was received.
 - Lessee does not remain on the premises beyond the determined end time for the event. Each additional hour on the premises will incur a \$200 fee, detracted from the damage deposit.
6. **Final Payment.** Final payment is due on **March 11, 2026.** Payment can be made with cash, check, or credit card. Checks should be made out to **The Promise of Justice Initiative**. Credit card information can be collect via phone or in person. Invoices and receipts are available upon request.
Credit card transactions are subject to a 3% convenience cost.
7. **Indemnification.** Lessee does hereby indemnify and hold Lessor harmless from and against any and all liability, damage, cost and expense, whether for injuries to person or loss of life or damage

to property, arising from or in any manner connected with the use or occupancy of the License Area and Property by Lessee, its officers, members, agents, contractors, and guests, unless such damage or injury is caused by the willful or negligent act or omission of Lessor, its employees, agents, or independent contractors. The termination of this License Agreement shall not affect Lessee's indemnification obligations herein with respect to any matter or event that occurs prior to the termination of this License Agreement.

8. **Marketing.** All press releases, fliers, press kits, advertisements, and other marketing elements must be submitted to Lessor for approval prior to distribution. Lessor has final authority on verbiage, images, and other representations of the Promise of Justice Initiative, Arts Estuary 1024 and related entities, including tenants.
9. **Equipment and Furniture Usage.** Lessee may use Lessor's thirteen-foot ladder, eight (8) six-foot tables, and approximately thirty (30) stackable, armless chairs either inside or outside. The Lessee may use the Lessor's four (4) square, folding tables and fourteen (14) black and silver stackable chairs in the kitchen, however they may not take this furniture outside. All must be returned in the same condition at the end of the license agreement.
10. **Staffing.** Included in the cost of the rental is one assigned venue manager. This person, acting on behalf of the Promise of Justice Initiative, is available to help you use the space, assist vendors, and supervise the security guard(s). Lessee must provide their own staffing for set-up, catering, cleaning up during and after the event, and doing any other event-related tasks. The Lessor will also provide one (1) security guard for events under 100 people, and two (2) security guards for events at or over 100 people.
11. **Signage.** Lessee shall not have the right to install any signs or decorative elements on the License Premises without Lessor's prior written consent. Lessee shall at the termination of this agreement remove all signs or other decorative elements installed by Lessee and repair any damage caused by such installation or removal, including without limitation, the design, installation, and placement of such signs.
12. **Rights Reserved by Lessor.** Lessor reserves, and may exercise without affecting Lessee's rights or obligations hereunder, the right to enter or use the License Premises at any time during the term of this agreement.
13. **Rules and Regulations.** Lessor shall have the right, from time to time upon written notice thereof to Lessee, to prescribe reasonable rules and regulations which in its judgment may be desirable for the use of the License Premises. Lessee agrees to comply with all such rules and regulations

stipulated in the policy and procedures manual. A violation of any such rules and regulations shall constitute a default by Lessee hereunder. The Lessee agrees to adhere to the following rules:

- 13.1. Capacity of the venue is not to exceed **200 people**.
- 13.2. Amplified music (DJ or band) is allowed provided the application of follows the good neighbor practices and non-amplified brass bands must end playing promptly at 9:30 PM. Music is not to exceed **75** decibels during the event.
- 13.3. After 9:30 P.M., music is not to exceed **65** decibels. All music must end promptly at 10:00 P.M.
- 13.4. **All events must end promptly at 9:00 PM Sunday – Thursday and 10:00 P.M Friday & Saturday.**
- 13.5. **Lessees are not permitted to use or enter the parking lot or adjacent grassy area unless otherwise agreed upon. Lessees are responsible for ensuring that guests do not loiter in the parking lot or adjacent grassy area.**

14. **Entire Agreement.** No promises, agreements, conditions, undertakings, warranties or representations, express or implied, among the parties hereto shall be valid unless the same are embodied in a writing signed by the party charged. This License Agreement may not be modified orally or in any manner other than by an agreement in writing signed by all the parties hereto or their respective successors in interest.

15. **Governing Law.** It is the intention of the parties hereto that all questions with respect to the construction of this License Agreement and the rights and liabilities of the parties hereunder shall be determined in accordance with the laws of Louisiana.

IN WITNESS WHEREOF, Lessor and Lessee have caused this License Agreement to be executed under seal by their duly authorized representatives the day and year first above written.

LESSOR:

X _____
Samantha Kennedy
Executive Director
The Promise of Justice Initiative

Date Signed: _____

LESSEE:

Signature: _____
Name: _____
Title: _____
Organization: _____

Date Signed: _____